

terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The subject compromise is APPROVED and the Petition to Approve Compromise GRANTED.
2. Plaintiff to submit a proposed form of order.

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: PROTECTIVE ORDER AND FOR SANCTIONS**
FILED BY: CMD SALOON, LLC
TENTATIVE RULING:

Defendant and cross-complainant CMD Saloon, LLC (“CMD”) filed a Motion for Protective Order and for Sanctions on September 9, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on January 26, 2026. Notice of the motion was duly given. See Notice of Motion for Protective Order filed December 16, 2025. No opposition papers were filed. See Non-Opposition filed January 14, 2026.

Background

The moving party’s supporting declaration summarizes the discovery requests served on the moving party CMD by defendant and cross-defendant Misty Leone (“Ms. Leone”) in this case. See Declaration of David S. Pearson filed September 9, 2025 (“Pearson Decl.”), ¶¶2-3.

The two most recent sets of discovery which and the requests that are the subject of this motion are (1) a set of Form Interrogatories—General, Set One (the “Form Interrogatories”) and (2) a set of Requests for Admission, Set One (the “RFAs”). See Pearson Decl., **Exhibits A and B**, respectively. The RFAs consist of 35 separate requests for admission. These two discovery requests are referred to hereinafter as the “Discovery Requests.”

CMD’s counsel sought to meet and confer about the Discovery Requests. See Pearson Decl., ¶4 and **Exhibit C** thereto. The meet and confer communication outlined CMD’s concerns. *Id.* CMD asserted that form interrogatories were already previously propounded by Ms. Leone on December 3, 2024 and it was improper to propound the same requests again in the manner done by Ms. Leone. *Id.* CMD also asserted that Ms. Leone had previously propounded requests for admissions with “over 85 RFAs” and the latest set was erroneously labeled as a “Set One,” containing another 35 separate requests for admissions without the required declaration for additional discovery. *Id.*

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting,*

Inc., supra, 148 Cal.App.4th at 402.

A party upon whom requests for admissions has been propounded may seek a protective order under Code of Civil Procedure section 2033.080. See Code Civ. Proc. § 2033.080. Likewise, a party may also seek a protective order regarding interrogatories propounded on the party. See Code Civ. Proc. § 2030.090. A court, for good cause shown, may make any order that justice requires to protect any party from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. *Id.* at §§ 2033.080(b) and 2030.090(b).

Both of the Discovery Requests propounded by Ms. Leone were defective and/or unwarranted.

It is undisputed that before propounding the subject RFAs, Ms. Leone had previously propounded substantially more than 35 requests for admissions. Pearson Decl., ¶12. A party requesting more than 35 requests for admissions (not relating to the genuineness of documents) must also serve a “DECLARATION FOR ADDITIONAL DISCOVERY.” See Code Civ. Proc. § 2033.050. Ms. Leone failed to do that. See Pearson Decl., ¶14 and **Exhibits B and C** thereto.

Moreover, as CMD’s briefing points out, the Discovery Requests are unwarranted. They are cumulative and, in many instances, are of no or marginal relevance. Many also seek admissions that are unnecessary and burdensome compared to any probative value, such as asking for an admission that a document states matters that are plainly reflected on the face of the subject document.

As to the Form Interrogatories, Ms. Leone had previously served a set of “Form Interrogatories – Limited Civil Cases” in January 2025. Pearson Decl., ¶12. She then served a second set of form interrogatories. Typically, a single set of form interrogatories is served on a party. The form interrogatories designated for use in a limited civil case (see DISC-004) contain much of the same general questions as in the general form typically used in unlimited civil cases (see DISC-001). While there are certainly differences, Ms. Leone failed to make any showing why both sets would have been necessary or how the latter set might have sought information not addressed by the first set. She certainly failed to meet and confer with CMD to articulate any belief that the second set was warranted notwithstanding the first set of form interrogatories.

Accordingly, the Court finds good cause to issue a Protective Order regarding the Discovery Requests as follows:

1. The Form Interrogatories need not be answered. Code Civ. Proc. § 2030.090(b)(1).
2. The RFAs need not be answered. Code Civ. Proc. § 2033.080(b)(1).

Sanctions

Arguably, monetary sanctions against Ms. Leone are mandatory. See Code Civ. Proc. §§ 2030.090(d) and 2033.080(d) (court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.).

However, even if not mandatory, Ms. Leone’s failure to respond to CMD’s meet and confer efforts regarding the Discovery Requests constitutes failing to confer with an opposing party or attorney in a reasonable and good faith attempt to resolve informally any dispute concerning discovery, pursuant to Code of Civil Procedure section 2023.010(i).

The Court finds that the foregoing conduct by Ms. Leone constituted conduct that was a misuse of the

discovery process within the meaning of Code of Civil Procedure section 2023.030 and that such conduct warrants the imposition of monetary sanctions. In failing to timely meet and confer regarding the Discovery Requests, the Court finds that Ms. Leone did not act with substantial justification. Furthermore, the Court does not find any other circumstances that would make the imposition of monetary sanctions unjust.

Disposition

The Court finds and rules as follows:

1. The Motion for Protective Order is GRANTED.
2. Ms. Leone shall pay monetary sanctions to CMD in the amount of **\$1,935.00** (the “Monetary Sanctions”). The Court finds that the Monetary Sanctions are reasonable expenses, including attorneys’ fees, incurred by CMD as a result of the foregoing conduct by Ms. Leone. In fixing said amount, the Court has considered all evidence in the record before the Court on the motion, including the supporting declaration of the moving party. The Monetary Sanctions shall be paid by Ms. Leone within thirty (30) calendar days of notice of entry of this order.
3. The Court shall issue the order after hearing.

3. 9:00 AM CASE NUMBER: C23-01955

CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE

***HEARING ON MOTION IN RE: VACATE FEBRUARY 2, 2026, BENCH TRIAL AND JURY TRIAL WAIVER**

FILED BY: LEONE, MISTY

TENTATIVE RULING:

Defendant and cross-defendant Misty Leone (“Ms. Leone”) filed a Motion to Vacate February 2, 2026 Bench Trial on November 3, 2025 (the “Motion to Vacate Bench Trial”). The Motion to Vacate Bench Trial was set for hearing on March 16, 2026. Notice of the motion was duly given. Subsequently, the Court advanced the hearing date on the motion to January 26, 2026. See Order entered January 20, 2026. The motion is opposed.

Background

At the Case Management Conference on October 23, 2025, a court trial was set by the Court regarding a bifurcated issue (the “Bifurcated Issue”). See Minute Order dated October 23, 2025. At a subsequent Issue Conference, the Court conferred with the parties regarding the Bifurcated Issue and all parties and counsel concurred that the scope of the Bifurcated Issue and the trial thereon is the nature and extent of plaintiff Nicole D. Trippie's ownership interest in the entity defendant CMD Saloon, LLC under the Operating Agreement and otherwise. Order entered January 20, 2026. The court trial on the Bifurcated Issue is set for February 2, 2026 (the “Bench Trial”).

Ms. Leone’s Motion to Vacate Bench Trial seeks to vacate the Bench Trial and convert the Issue Conference set in connection with the Bench Trial to a regular CMC. Ms. Leone contends that the Bench Trial would violate her right to a jury trial of the Bifurcated Issue. The latter request is DENIED as MOOT, as the matter was not heard before the Court convened and conducted the Issue Conference on January 8, 2026.

Ms. Leone filed a Supplemental Brief in support of her motion on January 20, 2026, a long with a supplement declaration (“Supp. Leone Decl.”).^{*} The Supp Leone Decl. describes at length apparent